

restrictions.” *Ibid.* It was provided that all of the materials “shall be placed within secure storage areas to which access can be gained only by use of two keys,” one in appellant’s possession and the other in the possession of the Archivist of the United States or members of his staff. With exceptions not material here, appellant agreed “not to withdraw from deposit any originals of the materials” for a period of three years, but reserved the right to “make reproductions” and to authorize other persons to have access on conditions prescribed by him. After three years, appellant might exercise the “right to withdraw from deposit without formality any or all of the Materials . . . and to retain . . . [them] for any purpose . . .” determined by him. *Id.*, at 161.

The Nixon-Sampson agreement treated the tape recordings separately. They were donated to the United States “effective September 1, 1979,” and meanwhile “shall remain on deposit.” It was provided however that “[s]ubsequent to September 1, 1979 the Administrator shall destroy such tapes as [Mr. Nixon] may direct” and in any event the tapes “shall be destroyed at the time of [his] death or on September 1, 1984, whichever event shall first occur.” *Ibid.* Otherwise the tapes were not to be withdrawn, and reproductions would be made only by “mutual agreement.” *Id.*, at 162. Access until September 1, 1979, was expressly reserved to appellant, except as he might authorize access by others on terms prescribed by him.

Public announcement of the agreement was followed 10 days later, September 18, by the introduction of S. 4016 by 13 Senators in the United States Senate. The bill, which became Pub. L. 93-526 and was designed, *inter alia*, to abrogate the Nixon-Sampson agreement, passed the Senate on October 4, 1974. It was awaiting action in the House of Representatives when on October 17, 1974, appellant filed suit in the District Court seeking specific enforcement of the Nixon-Sampson agreement. That action was consolidated with other suits seeking access to Presidential materials pur-